

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #01	CCRB Case #: 201901440	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/15/2019 10:00 PM	Location of Incident: § 87(2)(b) and 73rd Precinct stationhouse		18 Mo. SOL 4/1/2021		Precinct: 73
Date/Time CV Reported Mon, 02/18/2019 11:38 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/18/2019 11:38 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Arthur Mccarthy	04612	949289	073 PCT
2. SGT Robert Deferrari	01012	941635	073 PCT
3. POF Shalimar Scribner	20375	959420	073 PCT
4. POM Brett Woodard	27829	958175	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Nocerino	00491	937192	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Shalimar Scribner	Abuse: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Police Officer Shalimar Scribner questioned an individual.	A . Victim Unidentified
B . SGT Robert Deferrari	Abuse: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Sergeant Robert Deferrari stopped § 87(2)(b)	B . Unsubstantiated
C . SGT Robert Deferrari	Abuse: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Sergeant Robert Deferrari searched § 87(2)(b)	C . Unsubstantiated
D . POM Brett Woodard	Abuse: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Police Officer Brett Woodard searched § 87(2)(b)	D . Unsubstantiated
E . SGT Arthur Mccarthy	Discourtesy: On February 16, 2019, at the 73rd Precinct Stationhouse, Sergeant Arthur Mccarthy spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed the following complaint over the phone with the CCRB on February 18, 2019.

On February 15, 2019, at approximately 10:00 p.m., § 87(2)(b) waited for a friend inside of § 87(2)(b) in Brooklyn and stood near a group of unidentified individuals gambling in the lobby. PO Shalimar Scribner of the 73rd Precinct, entered the lobby and asked one of the individuals for his identification (**Allegation A - Abuse of Authority: Victim Unidentified**). Sgt. Michael Nocerino, Sgt. Robert Deferrari, and PO Brett Woodard of the 73rd Precinct entered the building lobby and Sgt. Deferrari stopped § 87(2)(b) (**Allegations B - Abuse of Authority: Unsubstantiated**). Sgt. Deferrari and PO Woodard searched § 87(2)(b)'s pants pockets (**Allegations C and D - Abuse of Authority: Unsubstantiated**). The officers ultimately let § 87(2)(b) go and did not issue any summons or arrest him. The next morning, on February 16, 2019, § 87(2)(b) went to the 73rd Precinct stationhouse to ask for a blank complaint form. He argued with Sgt. Arthur McCarthy over a police officer that had passed away recently, to which Sgt. McCarthy allegedly replied, "You motherfucker, get the fuck out of here. That was my friend." (**Allegation E - Discourtesy: Unsubstantiated**).

There is video with no audio from the 73rd Precinct stationhouse on February 16, 2019 (Board Review 01). No BWC video was found (Board Review 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Police Officer Shalimar Scribner questioned § 87(2)(b)

Allegation (B) Abuse of Authority: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Sergeant Robert Deferrari stopped § 87(2)(b)

Allegation (C) Abuse of Authority: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Sergeant Robert Deferrari searched § 87(2)(b)

Allegation (D) Abuse of Authority: On February 15, 2019, inside of § 87(2)(b) in Brooklyn, Police Officer Brett Woodard searched § 87(2)(b)

§ 87(2)(b) stated that he went to the lobby of § 87(2)(b) in Brooklyn to pick up a friend that he refused to identify for the investigation. The unidentified friend's brother, § 87(2)(b) came down to the building lobby and told § 87(2)(b) that his brother was occupied upstairs and would be a while. There was a group of four or five black males in the lobby, throwing dice and gambling but § 87(2)(b) did not know them and stated that he was not involved in the gambling, but was unsure if § 87(2)(b) got involved. PO Shalimar Scribner entered through a back entrance and stopped one of the unidentified individuals that was gambling. PO Scribner asked for his ID and asked if he lived in the building. The remainder of the group left the scene. Sgt. Deferrari, Sgt. Nocerino and PO Woodard then approached § 87(2)(b). Sgt. Deferrari told § 87(2)(b) that he was gambling and asked for his identification multiple times. § 87(2)(b) refused to provide his identification and said he did not consent to any searches. Sgt. Deferrari reached into § 87(2)(b)'s right jeans pocket and took out a lottery ticket and cigarettes, then put them back in the pocket. PO Woodard went into § 87(2)(b)'s left jeans pocket and removed an identification card, which he handed to Sgt. Deferrari. § 87(2)(b) remained in the lobby but the officers did not interact with him other than telling him to step back. After Sgt. Deferrari ran § 87(2)(b)'s identification on his department cell phone, he returned the identification to § 87(2)(b) and all the officers left the building (Board Review 03).

§ 87(2)(b) provided photos of the officers taken with a cellphone and stated that he did not know

who took them and did not disclose who provided them to him. The photos do not have any dates or timestamps on them. The photos depicted Sgt. Deferrari, Sgt. Nocerino, PO Woodard and PO Scribner (Board Review 04).

§ 87(2)(b) stated that § 87(2)(b) did not have a cellphone. § 87(2)(b) provided § 87(2)(b)'s last known phone number, which was out of service. LexisNexis and CLEAR searches done on April 11, 2019 yielded negative results for § 87(2)(b).

PO Scribner, Sgt. Nocerino, PO Woodard and Sgt. Deferrari consistently stated that this location is known for gambling but they did not recall this specific incident or being at this location on this day. All the interviewed officers were shown the photos provided by § 87(2)(b). They were able to identify themselves and each other in the photos but none of the officers recalled this specific incident. None of the officers had memo book entries documenting this incident (Board 05, 06, 07, 08).

Stop, Question and Frisk index yielded negative results for UF-250s prepared on this date (Board Review 09).

A warrant audit for § 87(2)(b) on the date of the incident also yielded negative results (Board Review 10).

A BADS search on April 9, 2019 yielded negative results for arrests related to this incident. The only arrests were sealed arrests done by the 73rd Precinct Detective Squad.

§ 87(2)(b) did not know the individual stopped by PO Scribner and there were no UF-250s or arrests associated with the individual. Additionally, PO Scribner did not have any entries about stopping the individual.

§ 87(2)(g) it is therefore recommended that **Allegation A** be closed as **Victim Unidentified**.

The CCRB was unable to identify or interview any witnesses and none of the officers could recall this incident. The only documentation was photos provided by § 87(2)(b) that have no timestamps. § 87(2)(g)

It is therefore recommended that **Allegations B, C and D** be closed as **Unsubstantiated**.

Allegation (E) Discourtesy: On February 16, 2019, at the 73rd Precinct Stationhouse, Sergeant Arthur McCarthy spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he went to the 73rd Precinct stationhouse the next morning to file a complaint against the officers. After requesting and receiving a blank complaint form from Sgt. McCarthy, Sgt. McCarthy explained that there could be a number of reasons why officers stopped him. He then brought up an incident where detectives in Queens were shot and killed after responding to a job. § 87(2)(b) told Sgt. McCarthy that the detective was killed by friendly fire and not the perpetrator. Sgt. McCarthy became irate and told § 87(2)(b) "You motherfucker, get the fuck out of here. That was my friend."

Sgt. McCarthy stated that § 87(2)(b) came into the stationhouse demanding the names of the

Although Sgt. McCarthy confirmed that § 87(2)(b) was at the stationhouse and did mock the police officer that had passed away, he denied cursing as § 87(2)(b) alleged. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

- § 87(2)(b) has been party to 12 CCRB complaints and has been named as a victim in 44 allegations (Board Review 11):

- PO Scribner has been a member of service for four years and has been a subject in two prior CCRB complaints and three allegations, none of which were substantiated. § 87(2)(b)

§ 87(2)(g)

- Sgt. Deferrari has been a member of service for 13 years and has been the subject in 8 prior CCRB complaints and 14 allegations, of which one was substantiated.
 - 201400676 involved a substantiated allegation for a stop of a person against Sgt. Nocerino. The board recommended Command Discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Woodard has been a member of service for five years and has been the subject in eight prior CCRB complaints and 15 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. McCarthy has been a member of service for nine years and has been the subject in 7 prior CCRB complaints and 13 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 14, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: SI Harold Rodriguez 5/18/20
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 5.22.20
Signature Print Title & Name Date

Reviewer:
Signature Print Title & Name Date